

26PR00688 Matter of Jacob Wagner Trust

County: sonoma

Division: Probate

Hearing date: 2027-01-08

Motion: Petition to Compel Accounting and Compel Transfer of Trust Property

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Petition to Compel Accounting and Compel Transfer of Trust Property

Tentative Ruling: The petition is CONTINUED to Friday, January 8, 2027 at 9:30 a.m. in Department 63 to allow Petitioner to cure the service defects.

The Petition alleges that Stephen is in exclusive possession of the Property. Therefore, Stephen is entitled to service in the manner of a summons pursuant to Probate Code section 851(a)(2) and Code of Civil Procedure section 413.10 et seq. The proof of service dated August 6, 2026 only shows service on Stephen via mail, which is insufficient. Alternatively, if petitioner can produce a proof of service at or before the hearing showing personal service of Stephen, the Court will address the merits and avoid a continuance.

However, any request for attorney's fees must be made by noticed motion and include the authority for an award, as well as support for the amount requested. With respect to costs, any person entitled to recovery of costs may seek costs by a memorandum of costs filed with the court and subject to a motion to tax, at the conclusion of the matter.